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23.02.2010

Smt. Prativa Patil,
Visitor of IIT Kharagpur
Hon'ble President of India
Rashtrapati Bhavan, New Delhi

May it please Your Excellency

I would like to inform you that from the attached Time Table of the Rajib Gandhi School of Intellectual Property Law (RGSOIPL, IIT Kharagpur, W.B.) it is evident that Mr. Tapas Bandopadhyay (TB) is teaching the Copy Rights and IT Law subject for the 3 (Three) years LL.B. Classes. But so far I know that he did not possess the requisite qualifications of LL.B. degree for teaching law subjects which may be established from the enclosed Bio-data submitted to the RGSOIPL. There are also other faculties namely Ms. Padmavati Manchikanti (PM) and Ms. Archana Chugh (AC) (copy enclosed) teaching Law subjects having no law degree which is required as per the Bar Council of India Rules.

The contention of the Director and PIO of IIT Kharagpur is that the programme in IIT Law School is specially designed to have law and non law components in various intellectual property rights courses. As such various science faculties are needed for science components in these courses. This contention may not be tenable because Copy Right and IT Law cannot be taught by the person not having LL.B. degree.

Under the above circumstances, I request you to kindly make an inquiry and to take appropriate action for teaching law subjects by the faculties not having qualifications in Law.

Kindly acknowledge the receipt of this letter.

Thanking you

Yours faithfully

(J.K.Pal)

Enclosures:

1. Bio- Data of TB, AC, PM
2. Time Table of RGSOIPL
3. RTI Reply No HT/3-9/187/SG/000146/466, dated 17.03.2009